

SENATE No. 3208

Senate, July 23, 2026 -- Text of amendment (141) (offered by Senator Brownsberger) to the Ways and Means amendment (Senate, No. 3178) to the House Bill relative to economic development in the commonwealth.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 by inserting the following section:-

2 SECTION XXX. The General laws are hereby amended by inserting after chapter 93L
3 the following chapter:-

4 Chapter 93M Consumer Electronic Devices

5 Section 1. As used in this chapter, the following terms shall, unless the context clearly
6 requires otherwise, have the following meanings:

7 "Authorized repair provider", with respect to an manufacturer, an individual or business
8 who is unaffiliated with the manufacturer and who has an arrangement with manufacturer under
9 which the manufacturer grants to the individual or business a license to use a trade name, service
10 mark, or other proprietary identifier for the purposes of offering the services of diagnosis,
11 maintenance, or repair of consumer electronic devices under the name of the manufacturer, or
12 other arrangement with the manufacturer to offer such services on behalf of manufacturer. A
13 manufacturer who offers the services of diagnosis, maintenance, or repair of consumer electronic
14 devices manufactured by it or on its behalf, or sold or otherwise supplied by it, and who does not

do so exclusively through one or more arrangements as described in this subsection with an unaffiliated individual or business, shall be considered an authorized repair provider with respect to such equipment.

“Consumer Electronic Device” or "device", any product or electronic that:

(a) Depends, in whole or in part, on digital electronics, such as a microprocessor or microcontroller, embedded in or attached to the product in order to function;

(b) Is tangible personal property;

(c) Is generally used for personal, family, or household purposes;

(d) Is sold, used, or supplied in Massachusetts 180 days or more after the product was first manufactured and 180 days or more after the product was first sold or used in Massachusetts; and

(e) Might be, but is not necessarily, capable of attachment to or installation in real property.

"Documentation", any manual, diagram, reporting output, service code description, schematic, security codes or passwords, or other information used in effecting the services of diagnosis, maintenance, or repair of consumer electronic devices.

“Fair and reasonable terms”, costs and terms for obtaining a part or tool or documentation that are equivalent to the most favorable costs and terms under which manufacturer offers the part, tool, or documentation to an authorized repair provider accounting for any discount, rebate, convenient and timely means of delivery, means of enabling fully restored and updated functionality, rights of use, or other incentive or preference the manufacturer offers to an

authorized repair provider, or any additional cost, burden, or impediment the manufacturer imposes on an owner or independent repair provider. For documentation, including any relevant updates, "fair and reasonable terms" also means at no charge, except that, when the documentation is requested in physical printed form, a charge may be included for the reasonable actual costs of preparing and sending the copy.

"Independent repair provider", with respect to a manufacturer, an individual or business operating in the Commonwealth, who does not have an arrangement as an authorized repair provider with the manufacturer, and who is not affiliated with any individual or business who has such an arrangement with the manufacturer, when that individual or business is engaged in the services of diagnosis, maintenance, or repair of consumer electronic devices. A manufacturer or, with respect to that manufacturer, an individual or business who has such an arrangement with that manufacturer, or who is affiliated with an individual or business who has such an arrangement with that manufacturer, shall be considered an independent repair provider when engaging in the services of diagnosis, maintenance, or repair of consumer electronic devices that is not manufactured by or on behalf of, or sold or otherwise supplied by, that manufacturer.

"Manufacturer", a business engaged in the business of selling, leasing, or otherwise supplying new consumer electronic devices, or parts of equipment, manufactured by or on behalf of itself, to any individual or business.

"Owner", an individual or business who lawfully acquires a portable wireless device purchased or used in the Commonwealth.

“Part”, any replacement part, either new or used, made available by or to a manufacturer for purposes of effecting the services of maintenance or repair of consumer electronic devices manufactured by or on behalf of, sold or otherwise supplied by the manufacturer.

"Portable Wireless Device", a product which includes a battery, microphone, speaker and display designed to send and receive transmissions through a cellular radiotelephone service.

“Tool”, any software program, hardware implement, or other apparatus used for diagnosis, maintenance, or repair of consumer electronic devices, including software or other mechanisms that provision, program, or pair a part, calibrate functionality, or perform any other function required to bring the product back to fully functional condition.

"Trade secret", anything tangible or intangible or electronically stored or kept which constitutes, represents, evidences, or records intellectual property including secret or confidentially held designs, processes, procedures, formulas, inventions or improvements, or secrets of confidentially held scientific, technical, merchandising, production, financial, business or management information, or anything within the definition in 18 U.S.C. 1839(3).

"Video game console", a computing device, such as a console machine, a handheld console device, or another device or system, and its components and peripherals, that is primarily used by consumers for playing video games, but which is neither a general nor an all-purpose computer, such as a desktop computer, laptop, tablet, or cell phone.

Section 2. Manufacturers of consumer electronic devices, or parts for such equipment, manufactured by it or on its behalf, or sold or otherwise supplied by it in the Commonwealth, shall make available to owners of such devices and to independent repair providers, on fair and reasonable terms, documentation, parts, and tools, inclusive of any updates, for purposes of

diagnosis, maintenance, or repair of such devices. Nothing in this subsection requires a manufacturer to make available a part that is no longer available to the manufacturer.

Section 3. Manufacturers that sell any diagnostic, service, or repair information to any independent repair provider or any other third-party provider in a format that is standardized with other manufacturers, and on terms and conditions more favorable than the manner and the terms and conditions pursuant to which an authorized repair provider obtains the same diagnostic, service, or repair information, shall be prohibited from requiring any authorized repair provider to continue purchasing diagnostic, service, or repair information in a proprietary format, unless such proprietary format includes diagnostic, service, repair, or dealership operations information or functionality that is not available in such standardized format.

Section 4. Nothing in this chapter shall be construed to require a manufacturer to divulge a trade secret, except as necessary to provide documentation, parts, and tools on fair and reasonable terms.

Section 5. Nothing in this chapter requires manufacturers or authorized repair providers to provide an owner or independent repair provider access to non-diagnostic and non-repair information provided by a manufacturer to an authorized repair provider pursuant to the terms of an authorizing agreement.

Section 6. (a) An independent repair provider or owner who believes that a manufacturer has failed to provide documentation, parts, and tools for purposes of diagnosis, maintenance, or repair of consumer electronic devices as required by this chapter shall notify the manufacturer in writing and give the manufacturer 30 days from the time the manufacturer receives the complaint

99 to cure the failure. If the manufacturer cures such a complaint within the cure period, damages
100 shall be limited to actual damages in any subsequent litigation.

101 (b) If the manufacturer fails to respond to the notice provided pursuant to subsection (a),
102 or if an independent repair provider or owner is not satisfied with the manufacturer's cure, the
103 independent repair provider or owner may file a complaint in superior court. The complaint shall
104 include the following:

105 (1) written information confirming that the complainant has attempted to acquire and use,
106 through the then available standard support function provided by the manufacturer, relevant
107 documentation, parts, and tools, including communication with customer assistance via the
108 manufacturer's then standard process, if made available by the manufacturer; and

109 (2) evidence of manufacturer notification as required by subsection (a).

110 Section 7. In addition to any other remedies that may be available, a violation of this
111 chapter shall be deemed to be an unfair method of competition and an unfair or deceptive act or
112 practice in the conduct of trade or commerce in violation of section 2 of chapter 93A.

113 Section 8. (a) The following devices, products, or services shall be exempt from the
114 requirements under this chapter:

115 (i) Motor vehicle, including a motorcycle, manufacturer, manufacturer of motor vehicle
116 equipment, or motor vehicle dealer acting in that capacity or to any product or service of a motor
117 vehicle manufacturer, manufacturer of motor vehicle equipment, or motor vehicle dealer acting
118 in that capacity;

119 (ii) Manufacturer, distributor, importer, or dealer of any power generation or storage
120 equipment, or equipment for fueling or charging motor vehicles;

121 (iii) Product that has never been available for retail sale to a consumer;

122 (iv) Product which is a system, mechanism, or series of mechanisms that generates,
123 stores, or combines generation and storage of electrical energy from solar radiation; or

124 (v) Product which stores electrical energy for a period of time and transmits the energy
125 after storage, that is interconnected with a transmission or distribution system and that is
126 approved by an electric utility or located on a customer's side of an electric utility meter in
127 accordance with an applicable utility tariff or interconnection agreement.

128 (b) Nothing in this section applies to utility equipment; farm or agricultural equipment;
129 construction equipment; compact construction equipment; road building equipment; electronic
130 vehicle charging infrastructure equipment; mining equipment; and any tools, technology,
131 attachments, accessories, components, and repair parts for any of the foregoing.

132 (c) Nothing in this section shall be construed to require any original manufacturer or
133 authorized repair provider to make available any parts, tools, or documentation required for the
134 diagnosis, maintenance, or repair of a video game console and its components and peripherals.

135 (d) Nothing in this section shall be construed to require any original manufacturer or
136 authorized repair provider to make available documentation or tools used exclusively for repairs
137 completed by machines that operate on several digital electronic products simultaneously, if the
138 original manufacturer makes available to owners of the product and independent repair providers

139 sufficient, alternative documentation and tools to effect the diagnosis, maintenance, or repair of
140 the digital electronic product.

141 (e) Nothing in this section shall be construed to require an original manufacturer to make
142 available special documentation, tools, parts, or other devices or implements that would disable
143 or override, without an owner's authorization, antitheft or privacy security measures that the
144 owner sets for digital electronic products.

145 (f) Nothing in this section shall apply to set-top boxes, modems, routers, or all-in-one
146 devices delivering internet, video, and voice systems that are distributed by a video, internet, or
147 voice service provider if the service provider offers equivalent or better, readily available
148 replacement equipment at no charge to the customer.

149 (g) Nothing in this section shall apply to off-road equipment, including without
150 limitation, farm and utility tractors; farm implements; farm machinery; forestry equipment;
151 industrial equipment; utility equipment; construction equipment; compact construction
152 equipment; road-building equipment; mining equipment; turf, yard, and garden equipment;
153 outdoor power equipment; portable generators; marine, all-terrain sports, racing, and recreational
154 vehicles; stand-alone or integrated stationary or mobile internal combustion engines; power
155 sources such as generator sets, electric batteries, and fuel cell power; power tools; and any tools,
156 technology, attachments, accessories, components, and repair parts for any of the foregoing.

157 (h) Nothing in this section shall apply to fire alarm systems, intrusion detection
158 equipment that is provided or configured to be provided with a security monitoring service, life
159 safety systems, and physical access control equipment.

160 (i) Nothing in this chapter shall be construed to require an original manufacturer or
161 authorized repair provider to make available any parts, tools, or documentation required for the
162 diagnosis, maintenance, or repair of public safety communications equipment, the intended use
163 of which is for emergency response or prevention purposes by an emergency service
164 organization such as a police, fire, or emergency medical services agency.

165 (j) Nothing in this chapter shall apply to a device approved by the United States Food and
166 Drug Administration.

167 Section 9. To the extent a provision of this chapter conflicts with federal law, the federal
168 law shall control.

169 Section 10. This Act applies with respect to equipment sold or in use on or after the
170 effective date of this Act.

171 Section 11. This Act shall take effect January 1, 2027.